

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY

PRC Appeal No. 49/2026

M/s Sheikh Umer Shah & Brothers
Through its representative Rab Nawaz,
Resident of District Musakhel.

...Appellant

Versus

1. The Grievance Redressal Committee
2. The Executive Engineer, B&R, District Musakhel
3. The Chief Engineer, B&R, Balochistan
4. The Secretary B&R, Balochistan

...Respondents

5. QUORUM

1. Habib Ur Rehman Jamot – MD / Chairman PRC
2. Mubashir Ali Khan (FCIPS) – Member
3. Engr. (R) Iftikhar Mir – Technical Member PRC
4. Engr. Junaid Shah – Member PRC
5. Abdul Wahab Bulledi, Advocate – Private Member PRC

APPEAL AGAINST THE DECISION PASSED BY CRC DATED 23-02-2026
TSE NO. 252601938423

For the Appellant:

Mr. Rab Nawaz, Representative

For the Respondents:

Mr. Sahibzada Muhammad Bilal, Executive Engineer-II, Provincial B&R Department

Date of Final Hearing: 11-03-2026

Decided on: 16-03-2026

1. Brief Facts

The present appeal has been filed by the appellant with the contention that he is a law-abiding citizen of Pakistan and a well-known government contractor possessing a valid construction license issued by the Pakistan Engineering Council (PEC).

It is the case of the appellant that, pursuant to the Tender Notice bearing PRQ No. 3120 dated 06-01-2026, he participated in the procurement process relating to TSE No. 252601938423 for the work titled "Construction of Police Station Rarasham, Police Station Saddar Musakhel, and Police Station Kingri," having an estimated cost of Rs. 59.584 Million.

The appellant contends that he submitted all the requisite documents in accordance with the bidding documents; however, the procuring agency allegedly disqualified him during the Eligibility Assessment, thereby technically knocking him out of the bidding process.

Being aggrieved by such disqualification, the appellant filed a written complaint before the Grievance Redressal Committee (GRC) on 10-02-2026, which was decided on 23-02-2026, whereby the complaint of the appellant was dismissed.

2. Prayers of the Appellant

The appellant has prayed that the decision of the Grievance Redressal Committee dated 23-02-2026 be set aside and that the procuring agency be directed to reconsider the appellant's bid in accordance with the bidding documents and the applicable procurement rules.

3. Contentions of the Respondents

The representative of the procuring agency, while rebutting the contentions of the appellant, submitted that the appellant had failed to submit the mandatory documents required under the bidding documents and was therefore rightly disqualified during the eligibility assessment.

It was further submitted that the bid of the appellant lacked the following mandatory documents:

A. A fresh Combined Legal Affidavit was required to be submitted; however, the appellant attached an old affidavit executed in the year 2023.

B. The appellant was required to submit a Current Commitment Work Construction Schedule, whereas he instead attached a PEC License, which was not the required document.

C. The bidding documents required submission of Financial Situation and Cash Flow statements; however, the appellant merely submitted a Bank Maintenance Certificate without providing the required Cash Flow statement.

D. The appellant was required to submit a Declaration of Non-Blacklisting on the firm's letterhead, which was also not provided.

During the course of proceedings, when the appellant was confronted with regard to the submission of the above-mentioned documents, he was unable to affirmatively demonstrate that the said documents had been submitted with his bid.

6. Points for Determination

In light of the pleadings and submissions of the parties, the following points arise for determination before this Committee:

Whether the disqualification of the appellant during the eligibility assessment by the Procuring Agency was lawful and in accordance with the bidding documents, and whether the decision of the Grievance Redressal Committee dated 23-02-2026 warrants interference by this Committee?

7. Discussion and Analysis

We have carefully examined the available record and have heard the learned representatives of both parties at length.

The record reveals that the bid submitted by the appellant lacked several mandatory documents required under the bidding documents, particularly those relating to the fresh legal affidavit, current commitment work schedule, financial cash flow statement, and declaration of non-blacklisting.

These documents formed an essential part of the eligibility assessment criteria. Non-submission of such mandatory documents renders a bidder non-responsive at the eligibility stage.

Furthermore, during the course of proceedings before this Committee, the appellant could not satisfactorily demonstrate that the required documents had in fact been submitted with his bid.

In such circumstances, the action of the Procuring Agency in declaring the appellant technically non-responsive cannot be said to be arbitrary or contrary to the bidding documents.

The Committee has also perused the decision of the Complaint Redressal Committee dated 23-02-2026 and finds the same to be well-reasoned and based on the material available on record.

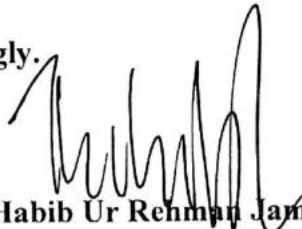
Therefore, no ground has been made out to warrant interference by this Committee in the impugned decision.

8. Decision / Order

For the foregoing reasons, the appeal filed by the appellant is found to be devoid of merit.

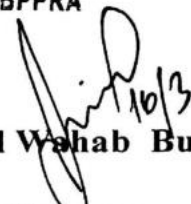
Consequently, the decision of the Complaint Redressal Committee dated 23-02-2026 is hereby upheld, and the appeal stands dismissed.

The parties be informed accordingly.


Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA) 16/03/2026


Mubashir Ali Khan
Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah
Member
Procurement Review Committee
BPPRA


Engr.(R) Istikhar Mir
Member
Procurement Review Committee
BPPRA 16/3/2026

Abdul Wahab Buledi
Member
Procurement Review Committee
BPPRA 16/3